

IN THE HONOURABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA,
SITTING IN ITS OCTOBER TERM, A. D. 2025.

BEFORE HER HONOR: YAMIE QUIQUI GBEISAY, SR CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE ASSOCIATE JUSTICE
BEFORE HIS HONOR : YUSSIF D. KABA ASSOCIATE JUSTICE
BEFORE HIS HONOR : CEATNEH D. CLINTON-JOHNSON ASSOCIATE JUSTICE
BEFORE HER HONOR: BOAKAI N. KANNEH..... ASSOCIATE JUSTICE

Cllr. Frank Musa Dean, Jr. Former Minister)
of Justice, of the City of Monrovia, Liberia)
..... Informant)

Versus)

Bill of Information

His Honor J. Boima Konton, Assigned Circuit)
Judge, 6th Judicial Circuit, Civil Law Court,)
Montserrado County, the Sheriff, 6th Judicial)
Circuit, Civil Law Court, Montserrado County, T.)
David Sluward and Abraham Kamara, Holders)
of Class "C" Mining Licence, Agency Claim #12F)
/Survey, Smith Town, Gbarma Mining Agency,)
Gbarma Statutory District, Gbarpolu County,)
Liberia; and Mohammed Kamara Commonly)
known as "JR", also of Smith Town, Gbarma)
Statutory District, Gbarpolu County, Republic of)
Liberia Respondents)

GROWING OUT OF THE CASE:

The Minister of Mines and Energy, his Deputies)
and Assistant Ministers, Directors, and all other)
persons acting and operating under their)
authority and Mustapha Tunkara, president of)
the Diamond Association.....Appellants)

Versus)

Appeal

T. David Sluward and Abraham Kamara, Holders)
of Class "C" Mining Licence, Agency Claim #12F)
/Survey, Smith Town, Gbarma Mining Agency,)
Gbarma Statutory District, Gbarpolu County,)
Liberia; and Mohammed Kamara Commonly)
known as "JR", also of Smith Town, Gbarma)
Statutory District, Gbarpolu County, Republic of)
Liberia Appellee)

Heard: October 27, 2025

Decided: December 18, 2025

MR. JUSTICE KABA DELIVERED THE OPINION OF THE COURT.

This Bill of Information grows out of the enforcement by the Sixth Judicial
Circuit, Civil Law Court for Montserrado County, of a Mandate of this Court

contained in a Judgment of August 14, 2025. In that Mandate, this Court held the Government of Liberia liable and ordered the restitution of a 53.34-carat diamond or its market value.

In enforcing said Mandate, the presiding judge of the trial court cited Cllr. Frank Musa Dean, Jr., Informant herein, and others for a conference that culminated in the issuance of a writ of arrest for the respondent and others in connection with this enforcement. The informant then fled to this Court by this Bill of Information alleging that the lower court judge improperly ordered his arrest and detention at the Monrovia Central Prison, notwithstanding that he was not a party to the original judgment suggesting that it amount to improper execution of the mandate.

The Informant states that he served as Minister of Justice and Attorney General of Liberia, with the responsibility to provide legal opinions and services to the President and all executive agencies, according to Section 22.2(c) of the Executive Law, Title 12, Liberian Code of Laws Revised. He notes that in April 2023, the Ministry of Mines and Energy asked the Ministry of Justice for legal advice regarding the ownership of a 53.34-carat diamond found in Gbarpolu County. To investigate this, a Joint Security Board of Inquiry, including the Ministry of Justice, the Ministry of Mines and Energy, the Executive Protection Service, the Armed Forces of Liberia, and the National Security Agency, was established to examine the discovery of the gemstone. He told the Court that the investigation revealed that the diamond was found in Smith Town, Gbarma Mining District #2, Lofa River, Claim 12F Survey, Gbarpolu County; that the Ministry of Mines and Energy later informed the Ministry of Justice that the mineral license for that claim had expired nearly a year prior to the discovery. The informant stated that, based on this, the Ministry of Justice, under his leadership and in accordance with Section 9.9 of the New Minerals and Mining Law of 2000, opined that when a mineral license expires, the right to mine or recover minerals reverts to the Government of Liberia without charge. The Informant emphasizes that the Ministry of Justice took no further steps and did not issue any additional opinion on this matter.

The Informant further stated that, notwithstanding, the co-respondent Judge of the Civil Law Court ordered the arrest and detention of the Informant and others "connected with" the diamond issue, pending their accounting for the said 53.34-carat diamond. The Informant argues that, since he was not a party to the original judgment, nor was the Ministry of Justice named in the Mandate, he cannot be bound by it. He cites *Gbae v. Geeby*, 14 LLR 147 (1960) and Article 20(a) of the 1986 Constitution, Section 44.29 of the Civil Procedure Law, which guarantee due process and limit the binding effect of judgments to the parties before the Court.

The Respondent, on the other hand, argues that the Informant is attempting to re-litigate a matter already definitively settled by this Court. They claim that the Bill of Information is not correctly filed because the Informant has failed to clearly demonstrate any irregular or improper execution of this Court's Mandate by the Sheriff, the Judge, or any other party, as required by Rule IV, Part 12(a) of the Revised Rules of the Supreme Court of Liberia. The Respondent also asserts that the Informant, in his capacity as Minister of Justice, provided the legal justification for the illegal seizure and confiscation of the diamond, and thus falls within the scope of the phrase "and all other persons acting and operating under their authority" as used in this Court's previous judgment. They contend that the Informant cannot claim qualified immunity or invoke Article 21(i) of the Constitution, as his actions amount to an abuse of office. Therefore, they request that the Bill of Information be denied and dismissed.

Reviewing the pleadings, briefs, and arguments of the parties, we identify two issues that are decisive in this matter as follows:

Did the lower court judge improperly execute this Court's Mandate?

Whether, given the facts and circumstances, the informant is qualified to file this Bill of Information.

We will now discuss the issues in the order they were listed.

The Court answers the first question in the positive. Courts must confine the enforcement of judgment within the limits prescribed by the judgment itself. A Mandate growing out of a Judgment of this Court rendered against

the Government of Liberia cannot lawfully be enforced against former officials who were not personally named or adjudged liable. To do otherwise would violate Article 20(a) of the Constitution of Liberia (1986).

The Government of Liberia is a legal entity that acts through its agents; however, the agents are not personally liable for official acts unless they are personally named and adjudged liable. When a judgment is against the Republic, the appropriate remedy lies in enforcing the obligation through the Minister of Finance, rather than through the personal attachment of officials. The Civil Procedure Law Rev. Code 1:44.29. "None of the procedures for the enforcement of money judgments is applicable to a judgment against the Republic, its agencies, officers sued in their official capacities, or any authorities wholly owned by the Government..." "...If final judgment is entered against the Republic, the clerk of the court shall deliver to the plaintiff a certified copy thereof. When such a copy of the judgment is presented to the President, he shall endorse thereon an order to the Minister of Finance directing payment of the amount named therein. Such payment shall be made forthwith".

In the instant case, the Mandate in question ordered the Government of Liberia, through the Ministry of Mines and Energy, to make restitution of the diamond or its monetary equivalent. Nowhere in the Mandate or the Judgment of this Court was the Informant personally named or held liable. Thus, the order of the Civil Law Court directing the arrest and detention of the Informant, who was neither a party nor named in the judgment, constitutes an overreach and an improper execution of this Court's Mandate. The lower court, in so acting, arrogated to itself authority not granted by the Mandate and thereby violated the due process rights of the Informant under Article 20(a) of the 1986 Constitution and Section 44.29 of the Civil Procedure Law.

Furthermore, when the informant served as Minister of Justice and Attorney General, he was under an obligation to provide legal advice and services to the Ministries and Agencies of the Executive Branch of Government as provided for by the Executive Law, Rev. Code 12:22(c). As an agent of the Government of Liberia, he cannot be held personally liable for acts done in

the course of his official duty without proof of ethical misconduct outside his scope of duty. Legal opinion given by the Minister consistent with Section 22(c) of the Executive Law, whether misguidedly or erroneously given, the doctrine of *respondeat superior* is applicable.

More besides, if it is established that the respondent, acting as an agent of the government, committed an illegal act while acting in such capacity that resulted in an adverse ruling against the government, and in the absence of naming or joining such agent as a party to a proceeding involving such act, a Mandate emanating from an affirmance of such ruling by this Court is not enforceable against such official. It will, however, be *ultra-virus* for such official to be held by the trial court to answer for any such adverse judgment against the government. This, however, does not preclude the government from instituting appropriate action against such agent to address this dereliction of duty.

This brings us to the second issue of whether, under the facts and circumstances revealed by the bill of information, the informant is qualified to bring this Bill of Information. This Court answer this query in the Negative. The office of a bill of information filed before this Court is well define by the rules governing proceedings before this Court and in a plethora of cases determined by this Court. Generally, a Bill of Information will lie to prevent or correct an irregular or improper execution of this Court's Mandate, or where there is disrespect or interference with the authority of this Court. Rule IV of the Revised Rules of the Supreme Court. A Bill of Information will lie to restrain the enforcement of a judgment when the execution thereof is irregular or improperly directed. *Gbae v. Geeby*, 14 LLR 147 (1960).

While we acknowledged *supra* the improper execution of the Mandate of this Court by the lower court judge, however information cannot be used as a substitute for remedial processes or as an avenue for the re-litigation of a matter already concluded. It is the law that the Supreme Court cannot legally obtain jurisdiction over a bill of information when there is no proceeding pending before it from which such information grew. *Rizzo et al v Metzger et al* 38 LLR 476 (1997); A bill of information is not a remedial

writ which seeks review of the acts of a court or its officials, as other writs are available for that purpose. A bill of information is not the proper course open to one who alleges that he had not had his day in court. The proper course opened to one who alleges that he has not had his day in court is the writ of error or a motion to vacate the judgment. *Kpoto v Kpoto* 34 LLR 371 (1987). Bill of information is properly before this Court when the subject matter is pending before this court; the mandate has been improperly executed, or it seeks to provide clarity on the judgment/opinion of this Court. Rule IV of the Revised Rules of the Supreme Court; *Gbae v. Geeby*, 14 LLR 147 (1960). *Speaker J. Fonati Koffa v Representative Richard N. Koon, et al, Supreme Court Opinion, March Term, 2025*. Unlike bill of information filed before a trial court, the office of a bill of information before this Court is limited and parties who should benefit from filling this application are those named in the original suit or named in the Mandate of this Court. Bill of information cannot be entertained as an independent action before this Court, but rather, an ancillary action filed by either of the original parties growing out of a main suit.

The informant, in his bill of information, averred that the order of his arrest by the lower court to give account of the 53.34 carat diamond were not founded upon any express provision of this Court's Mandate, and such action, being a violation of the due process right of the informant, warrants the intervention of this Court through a Bill of Information. We do not agree. This Court says that while it agree that the trial court was wrongfully executing our Mandate by ordering the arrest of the informant here, when the said Mandate made no reference or inference to the said informant, however, the informant, not being a party to the action out of which the bill of information grew, a bill of information is not the proper vehicle to remedied such violent visited upon the law by the trial court's judge. There exist other remedies in law to address such action of the lower court. The purpose of this limitation is to preserve judicial order and prevent the misuse of this Court's extraordinary jurisdiction. To permit any person, whether connected tangentially or incidentally to a case, to invoke a Bill of Information would render the remedy limitless and encourage the reopening of settled matters under the pretext of correcting irregularities. This Court reiterates and acknowledges that the lower court improperly

interpreted our Mandate. However, the question before us is not whether the Informant's rights were violated in fact, but whether such a violation is remediable under a Bill of Information. We think no. The Informant, as he himself showed, was not a party to the original suit. The Mandate in question ordered the Government of Liberia, through the Ministry of Mines and Energy, to make restitution of the diamond or its monetary equivalent. Nowhere in the Mandate or the Judgment of this Court was the informant personally named or held liable. Consequently, the enforcement actions of the lower court, though irregular, do not confer standing upon the Informant to invoke the office of a Bill of Information.

This having been said, and considering that this Court has held in numerous occasion that it possess the competence to do what the lower court oath to have done, and further taking judicial notice that the informant herein had previously filed a petition for a writ of prohibition before the Chambers Justice and subsequent withdrew same, this Court reiterates that a bill of information will not lie in the instant case, but however hold that the trial judge committed reversible error when held the informant herein accountable for satisfying a Mandate of this Court in which he was not directly or indirectly named, and was never a party to the case out of which the Mandate grew. The informant, not being a party to the action out of which the bill of information grew, a bill of information is not the proper vehicle to remedy such a violation visited upon the law by the trial court's judge.

WHEREFORE, AND IN VIEW OF THE FOREGOING, the bill of information not being the proper course of action, we however hold that the trial court proceeded improperly in the enforcement of the Mandate of this Court. The Clerk of this Court is ordered to send a Mandate to the court below commanding the judge presiding therein to resume jurisdiction and proceed consistent with the Judgment of this Opinion. Costs disallowed. AND IT IS HEREBY SO ORDERED.

WHEN THIS CASE WAS CALLED FOR HEARING, COUNSELLORS J. JOHNNY MOMOH AND FRANK MUSA DEAN, JR. APPEARED *PRO SE* APPEARED FOR THE INFORMANT. WHILE COUSELLORS SAYMA SYRNUIS CEPHUS, KABINEH M. JA'NEH AND M. WILKINS WRIGHT APPEARED FOR THE RESPONDENT.